

Opinion of GORSUCH, J.

surmise that it will cause wildly more, disruption than these other decisions.

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The second and related reliance interest the dissent seizes upon involves the interest Louisiana and Oregon have in the security of their final criminal judgments. In light of our decision today, the dissent worries that defendants whose appeals are already complete might seek to challenge their nonunanimous convictions through collateral (*i. e.*, habeas) review.

But again the worries outstrip the facts. Under *Teague v. Lane*, newly recognized rules of criminal procedure do not normally apply in collateral review.⁷¹ True, *Teague* left open the possibility of an exception for “watershed rules” “implicat[ing] the fundamental fairness [and accuracy] of the trial.”⁷² But, as this language suggests, *Teague*’s test is a demanding one, so much so that this Court has yet to announce a new rule of criminal procedure capable of meeting it.⁷³ And the test is demanding by design, expressly calibrated to address the reliance interests States have in the finality of their criminal judgments.⁷⁴

Nor is the *Teague* question even before us. Whether the right to jury unanimity applies to cases on collateral review is a question for a future case where the parties will have a chance to brief the issue and we will benefit from their adversarial presentation. That litigation is sure to come, and will rightly take into account the States’ interest in the finality of their criminal convictions. In this way, *Teague* frees us to say what we know to be true about the rights of the accused under our Constitution today, while leaving questions about the reliance interest States possess in their final judgments for later proceedings crafted to account for

⁷¹ 489 U. S. 288, 311–312 (1989) (plurality opinion).

⁷² *Ibid.*

⁷³ See *Whorton v. Bockting*, 549 U. S. 406, 417–418 (2007).

⁷⁴ See *Stringer v. Black*, 503 U. S. 222, 227–228 (1992).